

25STCV35555 25STCV35555

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Case Number: 25STCV35555 Hearing Date: September 8, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

ANDY GARCIA,

Plaintiff,

vs.

UNIVERSAL MUSIC GROUP, et al.,

Defendants.

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CASE NO.: 25STCV35555

[TENTATIVE] ORDER SUSTAINING IN PART DEMURRER;
GRANTING MOTION TO STRIKE

Dept. 506

8:30 a.m.

September 8, 2026

On

December 5, 2025, Plaintiff Andy Garcia filed this action. On February 24, 2026, Plaintiff identified AEG Presents LLC as Doe 1.

On

April 13, 2026, Defendant filed a demurrer (first, second, third, sixth, and seventh causes of action) and a motion to strike.

DEMURRER

A

demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context, accepting the alleged facts as true. (Nolte v. Cedars-Sinai Medical Center (2015) 236 Cal.App.4th 1401, 1406.)

A. The First and Second Causes of Action

Lack Sufficient Facts.

The

first cause of action alleges assault and battery, and the second cause of action alleges intentional infliction of emotional distress. Plaintiff alleges that Virgil René Gazca (aka That Mexican OT) performed a concert at a venue “promoted, organized, and/or sponsored by one or more of the Defendants.” (Complaint ¶¶ 6, 15.) Defendants failed to implement adequate security measures for the concert, and Gazca “engaged in statements and conduct that encouraged members of the audience to target and violently attack Plaintiff.” (Complaint ¶¶ 21-22.)

Defendant

argues that the boilerplate allegations are insufficient to hold it vicariously liable for Gazca's actions. (Demurrer at p. 1.) No specific conduct is attributed to Defendant, who was originally Doe 1. Instead, Plaintiff alleges that all Defendants, including Does, were “acting within the course and scope of their agency, employment, or joint venture with each other Defendant. Each Defendant, when acting as principal, was negligent in the selection, hiring, supervision, and retention of each other Defendant as an agent, employee, contractor, or joint venturer. Each Defendant, by and through its officers, directors, managers, supervisors, and/or managing agents, authorized, ratified, and otherwise approved the acts of the remaining Defendants.” (Complaint ¶ 11.) Although Plaintiff need not allege specific facts to support an agency or alter ego theory when the Defendants may be assumed to possess superior facts, he still must allege some facts, not just conclusions. (See *Rutherford Holdings, LLC v. Plaza Del Rey* (2014) 223 Cal.App.4th 221, 236; *First Western Bank & Trust Co. v. Bookasta* (1968) 267 Cal.App.2d 910, 915-916.)

The

demurrer to the first and second causes of action is sustained.

B. The Sixth Cause of Action Lacks Sufficient Facts.

An

employer may be liable to a third person for negligent hiring or retention when the employer hired an employee who was incompetent or unfit, the employer had reason to believe an undue risk of harm would exist because of the employment, and harm occurred. (*Federico v. Superior Court* (1997) 59 Cal. App. 4th 1207, 1213-1214.)

Plaintiff

alleges that the "Venue/Promoter Defendants" had a duty of care and should have known about Gazca's unfitness and dangerous propensities. (Complaint ¶¶ 72-75.) The Venue/Promoter Defendants are Defendants Universal

Music Group, LA Live Properties, LA Live Development Company, and/or Anschutz Entertainment Group Inc. (Complaint ¶ 9.) As with the other causes of action, there is no specific allegation about Defendant, and the agency allegations are conclusory.

The

demurrer to the sixth cause of action is sustained.

C. The Seventh Cause of Action is Duplicative.

Defendant

argues that "the seventh cause of action for negligence adds nothing to the complaint by way of fact or theory which has not already been alleged in the fourth cause of action for negligence/premises liability and the fifth cause of action for negligent security." (Demurrer at p. 6.)

The

fourth, fifth, and seventh causes of action all allege theories of negligence. The seventh cause of action specifically references

prior facts and claims, alleging that Defendants "breached their duty of care by acting negligently, carelessly, and recklessly in the ownership, operation, management, maintenance, and/or control of The Novo and the December 28, 2023 concert, including but not limited to the specific acts and omissions alleged throughout this Complaint." (Complaint ¶ 81.) These allegations should be combined into a single cause of action for negligence.

The

demurrer to the seventh cause of action is sustained.

D. The Third Cause of Action is Not a Cause of Action.

The

third cause of action alleges civil conspiracy.

Plaintiff alleges that Gazca conspired with "one or more of the individual attackers (sued herein as DOE defendants)" to attack Plaintiff. (Complaint ¶¶ 45-48.)

“Conspiracy

is not an independent tort; it cannot create a duty or abrogate an immunity. It allows tort recovery only against a party who already owes the duty and is not immune from liability based on applicable substantive tort law principles.” (Applied Equipment Corp. v. Litton Saudi Arabia Ltd. (1994) 7 Cal.4th 503, 514.) “Standing alone, a conspiracy does no harm and engenders no tort liability. It must be activated by the commission of an actual tort. “A civil conspiracy, however atrocious, does not give rise to a cause of action unless a civil wrong has been committed resulting in damage.”” (Id. at p. 511.)

Accordingly,

these allegations should be incorporated into the underlying claims, not alleged as a separate cause of action.

The

demurrer to the third cause of action is sustained.

MOTION

TO STRIKE

The

court may, upon a motion or at any time in its discretion: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc., § 436, subds. (a)-(b).)

Defendant

moves to strike the prayer for punitive damages. A plaintiff can recover punitive damages in tort cases where “the defendant has been guilty of oppression, fraud, or malice.” (Civ. Code § 3294, subd. (a).) “The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. [Citation.] Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim. [Citation.]” (Grieves v. Superior Court (1984) 157 Cal.App.3d 159, 166, fn. omitted.) Plaintiff does not allege any facts or conduct by Defendant that meets this standard.

Additionally,

a corporate employer can be liable for punitive damages only when an officer, director, or managing agent of the corporation had advance knowledge of the unfitness of the

employee and employed him or her with a conscious disregard of the rights or safety of others, authorized or ratified the wrongful conduct, or was personally guilty of oppression, fraud, or malice. (Civ. Code, § 3294, subd. (b).) Plaintiff does not allege facts showing Defendant's knowledge of unfit agents or its authorization or ratification of the wrongful conduct.

Defendant

also moves to strike the prayer for attorney fees. Plaintiff does not allege a contractual or legal basis for recovery of attorney fees.

The

motion is granted.

CONCLUSION

The

demurrer is SUSTAINED with 30 days' leave to amend.

The

motion to strike is GRANTED with 30 days' leave to amend.

Moving

party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at SMCDEPT48@lacourt.org indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 8th day of September 2026

Hon. Thomas D. Long

Judge of the Superior

Court